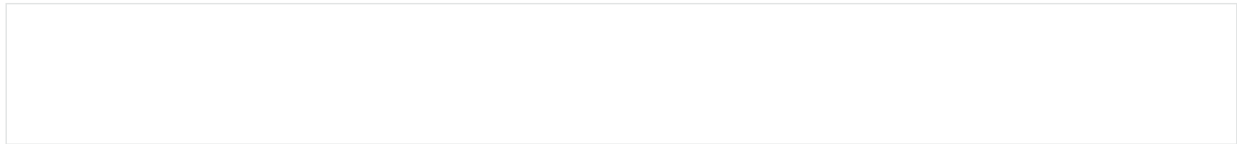




Protest nr: 05

Class	49er	
Protestor	ESP 424 - Pol Marsans Balcells	
Protestee	IRL 168 - Ben O Shaughnessy	
Witnesses		
Type	protest	
Incident	2 upwind mark . Esp424 starboard tack IRL 168 port tack, approaching upwind mark. IRL tacked and ESP had to bear away to avoid contact.	
Date/Time of hearing	20 Apr 2026 at 15:50	
Location	Jury Rooms Base Nautique 1st floor	
Procedural matters	4. The panel of the International Jury was composed in accordance with RRS N1.4(b). 2. Diego Yubero (Support Person) for ESP 424 and Magda Resano (Coach of ESP 424), attended the hearing as observers. 3. ESP 424 provided video evidence.	
Facts found	1. Weather conditions at the time of the incident 6-7 kts and flat sea. 2. Sailing upwind toward the second rounding of Mark 1, with ESP 424 on 3. starboard tack and IRL 168 on port tack. Both boats are sailing on a convergent course with ESP 424 aiming amidships to the front part of the starboard wing of IRL 168. 3. IRL 168 luffed while on port tack. 4. Immediately after, ESP 424 bore away when the boats were 3 metres apart from each other to pass astern of IRL 168 before IRL 168 passed head to wind. 5. The distance between the ESP 424's starboard quarter when she passed astern of IRL 160 was 15 centimetres. 6. There was no contact and no boat took a penalty.	
Conclusion	IRL 168 on port failed to keep clear of ESP 424 on starboard, and broke RRS 10.	
Rules applicables	RRS 10, N1.4(b)	
Jury Decision:	IRL 168 is scored DSQ in Race 3 (49 Yellow).	
Date of decision:	20 Apr 2026 at 16:40	
Jury members	Gonzalo Heredia (ARG - IJ), Hella Bouma (NED - IJ), Cxema Pico (IRL - IJ)	

Signature:



21 Apr 2026 09:49:06